

24TRCV03470 24TRCV03470

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Case Number: 24TRCV03470 Hearing Date: August 10, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Monday, August 10, 2026

Calendar No.

PROCEEDINGS

Tala

Josephano v. Daphne Barak

24TRCV03470

1. Daphne Barak, et al.'s Motion to Set Aside and Vacate

Any Entry of Default and/or Default Judgment as Void for Lack of Proper

Service; to Quash Purported Service of Summons, and, in the Alternative, to

Transfer Action to Riverside County

TENTATIVE RULING

Daphne

Barak, et al.'s Motion to Set Aside and Vacate Any Entry of Default and/or

Default Judgment as Void for Lack of Proper Service; to Quash Purported Service

of Summons, and, in the Alternative, to Transfer Action to Riverside County is

granted, in part.

Background

Plaintiff filed the Complaint on October 16, 2024. Plaintiff alleges the following causes of action against Defendants - Extortion, Violation of the Bane Act, Invasion of Privacy, Personal Injury, and Intentional Infliction of Emotional Distress. Defendants' defaults were entered on April 10, 2025. Default judgment has not been entered.

Motion to Set Aside Default/Quash Service

CCP § 473(b) states, in relevant part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

. . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . . ."

Code Civ. Proc., § 473(c)(1)

states:

"Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

(A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.

(B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.

(C) Grant other relief as is appropriate.”

CCP § 473.5(a) states, in relevant part: “When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”

CCP § 473.5(b) states: “A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” The phrase “actual notice” means “genuine knowledge of the party litigant” and does not include constructive or imputed notice to the client. *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077.

“After six months from entry of default, a trial court may still vacate a default on equitable grounds even if statutory relief is unavailable. . .

. One ground for equitable relief is extrinsic mistake—a term broadly applied when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits. Extrinsic mistake is found when [among other things] ...

a mistake led a court to do what it never intended[.] When a default judgment has been obtained, equitable relief may be given only in exceptional circumstances.

[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court. Beyond this period there is a strong public policy in favor of the finality of judgments and only in exceptional circumstances should relief be granted. . . . To set aside a judgment based upon extrinsic mistake one must satisfy three elements. First, the defaulted party must demonstrate that it has a meritorious case. Second[], the party seeking to set aside the default must articulate a satisfactory excuse for not presenting a defense to the original action. Last[], the moving party must demonstrate diligence in seeking to set aside the default once ... discovered.” *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981–82 (internal citations and quotations omitted; emphasis in original).

CCP § 473(d) empowers the

Court to set aside any judgment that is void as a matter of law, e.g., lack of subject matter jurisdiction; lack of personal jurisdiction; lack of proper service of the summons and complaint; or the judgment violated due process rights. See *Dhawan v. Biring* (2015) 241 Cal.App.4th 963, 973-74; See also *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544; See also *Heidary v.*

Yadollahi (2002) 99 Cal.App.4th 857, 862-64. “It is well settled that a judgment or order which is void on its face, and which requires only an inspection of the judgment roll or record to show its invalidity, may be set aside on motion, at any time after its entry, by the court which rendered the judgment or made the order.” *Hiroko Kawakita Hayashi v.*

Lorenz (1954) 42 Cal.2d 848, 851. “Code of Civil Procedure section 473, subdivision (d) (hereafter section 473(d)), provides in relevant part that a court “may ... on motion of either party after notice to the other party, set aside any void judgment or order.” Under this provision, a party may move to vacate a judgment on the ground of improper service of process.” *California Capital Insurance Company v. Hoehn* (2024) 17 Cal.5th 207, 212.

“Mistake is not a ground for

relief under section 473, subdivision (b), when the court finds that the ‘mistake’ is simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law. Further, the term surprise, as used in section 473, refers to some condition or situation in which a party is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against. Finally, as for inadvertence or neglect, to

warrant relief under section 473 a litigant's neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief. It is the duty of every party desiring to resist an action or to participate in a judicial proceeding to take timely and adequate steps to retain counsel or to act in his own person to avoid an undesirable judgment. Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied. Courts neither act as guardians for incompetent parties nor for those who are grossly careless of their own affairs. The only occasion for the application of section 473 is where a party is unexpectedly placed in a situation to his injury without fault or negligence of his own and against which ordinary prudence could not have guarded." Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206 (internal citations and quotations omitted).

Code Civ. Proc., § 415.10

states:

"A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery. The date upon which personal delivery is made shall be entered on or affixed to the face of the copy of the summons at the time of its delivery. However, service of a summons without such date shall be valid and effective."

Code Civ. Proc., § 416.10

states:

"A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods:

(a) To the person designated as agent for service of process as provided by any provision in Section 202, 1502, 2105, or 2107 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in

effect on December 31, 1976, with respect to corporations to which they remain applicable).

(b) To the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process.

(c) If the corporation is a bank, to a cashier or assistant cashier or to a person specified in subdivision (a) or (b).

(d) If authorized by any provision in Section 1701, 1702, 2110, or 2111 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable), as provided by that provision.”

Code Civ. Proc., § 415.20
states, in relevant part:

“(a) In lieu of personal delivery of a copy of the summons and complaint to the person to be served as specified in Section 416.10, 416.20, 416.30, 416.40, or 416.50, a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office or, if no physical address is known, at his or her usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. When service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. Service of a summons in this manner is deemed complete on the 10th day after the mailing.”

Code Civ. Proc., § 415.30
states, in relevant part:

“(a) A summons may be served

by mail as provided in this section. A copy of the summons and of the complaint shall be mailed (by first-class mail or airmail, postage prepaid) to the person to be served, together with two copies of the notice and acknowledgment provided for in subdivision (b) and a return envelope, postage prepaid, addressed to the sender.

(c) Service of a summons

pursuant to this section is deemed complete on the date a written acknowledgment of receipt of summons is executed, if such acknowledgment thereafter is returned to the sender.”

Code Civ. Proc., § 418.10

states, in relevant part: “(a) A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.”

“Section 418.10, subdivision

(a) (§ 418.10(a)), entitles a defendant to move to quash “on or before the last day of [the movant’s] time to plead or within any further time that the court may for good cause allow.” In re Marriage of Obrecht (2016) 245

Cal.App.4th 1, 16. “The notice shall designate, as the time for making the motion, a date not more than 30 days after filing of the notice. The notice shall be served in the same manner, and at the same times, prescribed by subdivision (b) of Section 1005. The service and filing of the notice shall extend the defendant’s time to plead until 15 days after service upon him or her of a written notice of entry of an order denying his or her motion, except that for good cause shown the court may extend the defendant’s time to plead for an additional period not exceeding 20 days.” Code Civ. Proc., § 418.10(b).

Defendants move for the following orders:

“1. Setting aside and

vacating the entry of default entered on or about January 27, 2026 pursuant to Code of Civil Procedure section 473(d) on the grounds that Plaintiff failed to effectuate valid service of summons and the resulting default is void for lack of personal jurisdiction;

2. Quashing the purported

service of summons pursuant to Code of Civil Procedure section 418.10(a)(1);

3. Alternatively, setting

aside and vacating the entry of default pursuant to the mandatory

attorney-fault provisions of Code of Civil Procedure section 473(b);

4. Alternatively, setting

aside and vacating the entry of default pursuant to the discretionary

provisions of Code of Civil Procedure sections 473(b) and 473.5;

5. Following vacatur of the

default, transferring this action to the Superior Court of California, County

of Riverside pursuant to Code of Civil Procedure sections 395, 396a, and 397;

and

6. Granting such other and

further relief as the Court deems just and proper." (Notice of Motion, p. 2,

lines 3-15).

Defendants have adequately

established that their entries of default are void based on lack of proper

service. As to Daphne Barak, the proof of service indicates that she was served

by substitute service on December 17, 2024 at 7:10 A.M. by leaving the summons

and complaint with co-occupant Erbil Gunasti, and, then thereafter mailing to

Barak on December 26, 2024. The declaration of due diligence states the

following: "75643 Valle Vista Dr, Indian Wells, CA 92210; Sub-Served on

co-occupant. Saw subject through window. He refused to open door. Left papers

at door."

Erbil Gunasti filed a

declaration stating that the only service of relevant papers that he was aware

of was an attempted service that was made on December 15, 2024. Gunasti's

declaration makes no mention of service that was purportedly made on December

17, 2024. (Decl., Gunasti, ¶¶ 6-11). The declaration of due diligence presented

by the process server when examined in connection with the proof of service is

dubious. Merely seeing a co-occupant at a door does not provide any facts to

establish that the alleged person which the papers were left was, in fact,

Gunasti. No facts are presented to show how the process server could establish

that this person was in fact Gunasti and that he was even a co-occupant.

Further, there are no facts to show that the process server even announced that he was leaving papers at the door. For substitute service to be proper, the person with whom the papers are left must be "informed of the contents." CCP § 415.20. There are no facts to indicate Defendants were informed of the contents. Further, the fact that the information was not provided appears to be corroborated by the process server's own statement that he merely looked inside the window and then left the papers at the door.

As to the defaults of Erbil

Gunasti and California Docu Film Festival, LLC, Defendants have sufficiently established that their defaults are void due to lack of proper service of the summons and complaint. The proofs of service indicate that these parties were served by personal service on December 15, 2024 at 7:22 p.m. However, Defendants state that, in fact, Defendants were handed certain papers by a security guard after the security guard retrieved papers that were merely left at the front porch. In fact, according to Defendants, they were not handed to Defendants at all. (Decl., Gunasti, ¶¶ 6-10). Further, Defendants contend that the papers that were handed to them did not concern the instant action at all but instead a separate action – Case No. 24STCV27231.

When a Defendant challenges

the Court's personal jurisdiction on the grounds of improper service of process the burden is on the Plaintiff to prove the facts of effective service." Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413. Plaintiff must meet this burden by a preponderance of the evidence.

See Ziller Elec. Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1232. Plaintiff has not met his burden to establish facts of effective service. Instead, Plaintiff merely provided her own declaration which fails to provide any foundation or personal knowledge as to the facts of service in this case. No declaration was submitted from the process server who allegedly effectuated service.

"In the absence of a

voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant." Dill

v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1439. "A party cannot be properly joined unless served with the summons and complaint; notice does not substitute for proper service. Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant." Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808. "Service

of a substantially defective summons does not confer jurisdiction over a party and will not support a default judgment. Notice of the litigation does not confer personal jurisdiction absent substantial compliance with the statutory requirements for service of summons." MJS

Enterprises, Inc. v. Super. Ct. (1984) 153 Cal.App.3d 555, 557 (internal citations omitted).

Therefore, Defendants Daphne

Barak, et al.'s Motion to Set Aside and Vacate Any Entry of Default and/or Default Judgment as Void for Lack of Proper Service and to Quash Purported Service of Summons is granted.

Motion

to Transfer Venue

Code Civ. Proc., § 395(a)

states, in relevant part: "Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action."

Code Civ. Proc., § 396a(b)

states: "If it appears from the complaint or affidavit, or otherwise, that the superior court or court location where the action or proceeding is commenced is not the proper court or court location for the trial, the court where the action or proceeding is commenced, or a judge thereof, shall, whenever that fact appears, transfer it to the proper court or court location, on its own motion, or on motion of the defendant, unless the defendant consents in writing, or in open court (consent in open court being entered in the minutes of the court), to the keeping of the action or proceeding in the court or court location where commenced. If that consent is given, the action or proceeding may continue in the court or court location where commenced. Notwithstanding Section 1801.1 and subdivision (f) of Section 2983.7 of the Civil Code, that consent may be given by a defendant who is represented by counsel at the time the consent is given, and if an action or proceeding is subject to subdivision (b) of Section 395 or is for an unlawful detainer, that consent may only be given by a defendant who is represented by counsel at the time the consent is given."

Code Civ. Proc., § 396b(a)

states: “Except as otherwise provided in Section 396a, if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or, at his or her option, without answering, demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers. Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court.”

Code Civ. Proc., § 397

states, in relevant part: “The court may, on motion, change the place of trial in the following cases: (a) When the court designated in the complaint is not the proper court.”

The Court declines to rule

on the motion to transfer venue portion of this motion, at this time. First, no authority is submitted for the proposition that this type of motion can be heard in conjunction with a motion to vacate default and quash summons and complaint. By contrast, a motion to vacate default and a motion to quash can be filed and heard together. *Dollase v. Wanu Water, Inc.* (2023) 93 Cal.App.4th 1315. In addition, currently, Defendants did not submit evidence of the location of their residency.

Therefore, Defendants Daphne

Barak, et al.'s Motion to Set Aside and Vacate Any Entry of Default and/or Default Judgment as Void for Lack of Proper Service and to Quash Purported Service of Summons is granted. The Court declines to rule on Defendants' alternative request to transfer venue subject to a formal noticed motion to transfer venue.

Defendants are ordered to give notice of this ruling.